

		For example, in <i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, the court ruled as such after all issues between the plaintiff and moving defendants were “resolved by way of summary adjudication orders.” (<i>Ibid.</i>) The court held the same in <i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754. Such is the case here. Defendant successfully moved for summary judgment as to all issues between Plaintiff and Defendant. (ROAs 408 and 420.) As such, there are no remaining issues to be adjudicated between Plaintiff and Defendant. There are also no other pleadings in this case and therefore no other causes of action alleged against Defendant. In its discretion, the Court GRANTS the motion to enter judgment in favor of Defendant Action Property Management, Inc. <i>Defendant to give notice.</i>
108	Arismendi vs. El Torito Restaurant, 25-01504805	Plaintiff Jacqueline Arismendi moves to compel defendant FM Restaurants El Torito Opco, LLC (sued as El Torito Restaurant) to produce documents responsive to plaintiff’s Requests for Production of Documents, Set One and for monetary sanctions against defendant in the amount of \$1,200. Defendant has filed a Notice of Non-Opposition which states that the responsive documents have now been produced. Defense counsel’s declaration confirms the same. Thus, the Motion to Compel is DENIED as MOOT. However, Plaintiff’s request for monetary sanctions against defendant in the amount of \$1,200 is GRANTED, as the Court finds defendant’s failure to provide the responsive documents for over five months, despite repeated extensions, necessitated the filing of the instant motion and was without substantial justification. (Code Civ. Proc., § 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid within 30 days. <i>Moving party to give notice.</i>

109	Home Mortgage Alliance Corporation (HMAC) vs. Turturro, 24-01402022	Defendants, Michael Turturro (“Turturro”); OCMBC, Inc. (“OCMBC”); and Jet Alliance (collectively, “Defendants”), move for an order bifurcating the liability and punitive damages phases of the trial of this action and excluding evidence of all Defendants’ financial condition during the liability phase, pursuant to Civil Code section 3295(d). Plaintiff, Home Mortgage Alliance Corporation (HMAC) dba Jet Mortgage, and Cross-Defendant Alfred Hanna, do not oppose the motion to bifurcate which seeks to bifurcate the liability and punitive damages phases of trial pursuant to Civil Code section 3295(d). Civil Code section 3295(d) provides in relevant part, “The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294. Evidence of profit and financial condition shall be admissible only as to the defendant or defendants found to be liable to the plaintiff and to be guilty of malice, oppression, or fraud.” “The purpose behind Civil Code section 3295, which allows bifurcation and preclusion of evidence of a defendant’s wealth and profits during the liability phase of trial, is to minimize prejudice prior to the jury’s determination of a prima facie case of liability for punitive damages. [citation omitted] However, such evidence is not to be excluded on the basis of prejudice when the information is relevant to liability.” (<i>Notrica v. State Compensation Ins. Fund</i> (1999) 70 Cal.App.4th 911, 940. “As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant’s wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant’s “deep pockets” before they determine these threshold issues.” (<i>Torres v. Automobile Club of So. Calif.</i> (1997) 15 Cal.4th 771, 777-78.) Here, Plaintiff’s Second Amended Complaint seeks punitive damages against Defendants. There is no
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